

CITY OF CHEYENNE – CITY COUNCIL AGENDA ITEM SHEET

DATE OF COUNCIL MEETING: October 12, 2015

TYPE OF DOCUMENT: (☒ ORDINANCE) (☐ RESOLUTION) (☐ PRELIMINARY PLAT/
PRELIM PUD ZONE CHANGE) (☐ LEASE/CONTRACT) (☐ CHANGEORDER/CONTRACT
MODIFICATION) (☐ CONSIDER BID) (☐ APPLICATIONS/LICENSES/PERMITS)
(☐ APPOINTMENTS) (☐ ANNOUNCEMENTS/REPORTS/MOTIONS) (☐ OTHER)

SPONSOR: (ORDINANCE OR RESOLUTION) Bryan Cook

EXACT WORDING FOR AGENDA: An ordinance annexing to the City of Cheyenne, Wyoming, a parcel of land approximately 6.17 acres situated in Lots 1, 8, 9, Block 5; Lots 1-4, Block 6; and Lots 1-18, Block 7, Sun Rise Hills Addition Filing No. 1, and the adjacent portions of Thomas Road, Johnston Street, and a portion of vacated Sunrise Hills Drive, Laramie County, Wyoming (located at the southwest corner of Thomas and Ridge Roads).

(1% Sales Tax Funding/Years) N/A
(Other Funding _____)

CONTACT PERSON: Mike Tylka PHONE: 638-4342 DEPT: Development

OTHER CITY DEPTS AFFECTED: N/A

OTHER GOV'T AGENCIES AFFECTED: Laramie County

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: N/A

CONTRACT TERM: N/A STARTING DATE: N/A

	YES	NO	N/A
Is funding budgeted?	☐	☐	☒
Were Bids called for?	☐	☐	☒
Affected parties notified of Council procedure and dates?	☒	☐	☐
Has bond, insurance or other security been arranged?	☐	☐	☒
Have legal descriptions been checked?	☒	☐	☐

Agenda Item approved / reviewed by :

Risk Mgr (☐) City Attorney (☐) Dept. Head (☒)

General Comments: _____

Submitted by: Brandon Cammarata Title: Development Director Date: October 6, 2015

UPON PASSAGE OF THE AGENDA ITEM, COPIES SHOULD BE SENT TO:

GIS/Eng. Tech., Planning, BOPU

CLF&P, High West

County Assessor, Elections

Emergency Mgt, Fire Dist. 2

ANNEXATION REPORT

Sun Rise Hills Addition Filing No. 1 **Annexation Summation**

CASE NUMBER: UDC-15-00542

FILE CODE: SUH

PREPARED BY: Mike Tylka

PUBLIC HEARING: October 12, 2015

REQUIRED DOCUMENTS: The following documents have been submitted and reviewed by staff:

- Complete Application
- Petition Signed by property owners
- Annexation Map
- Soils Report (deferred to time of development)
- Signed clearance from the Board of Public Utilities

STAFF RECOMMENDATION

Staff recommends approval of the annexation ordinance for Sun Rise Hills Addition Filing No. 1.

ANNEATION REPORT & STAFF REPORT

Sun Rise Hills Addition Filing No. 1 Annexation

CASE NUMBER: UDC-15-00542
PREPARED BY: Mike Tylka
PUBLIC HEARING: October 12, 2015

FILE CODE: SUH

OWNER: Bernie Lowery 307.630.5453
Pronghorn Development, Ltd.
P.O. Box 2215
Cheyenne, WY 82003

AGENT: Brad Emmons 307.637.6017
A.V.I., P.C.
1103 Old Town Lane #101
Cheyenne, WY 82009

PROJECT: Sun Rise Hills Addition Filing No. 1 Annexation

WORK DESCRIPTION: An annexation application for a group of parcels southwest of the intersection of Thomas and Ridge Roads.

LOCATION:

1. Legal Description: A parcel of land approximately 6.17 acres situated in Lots 1, 8, 9, Block 5; Lots 1-4, Block 6; and Lots 1-18, Block 7, Sun Rise Hills Addition Filing No. 1, and the adjacent portions of Thomas Road, Johnston Street, and a portion of vacated Sunrise Hills Drive, Laramie County, Wyoming (located at the southwest corner of Thomas and Ridge Roads).
2. Location: southwest of the intersection of Thomas and Ridge Roads.
3. Address: N/A

SIZE: 6.17 acres

CURRENT ZONING: County MR
PROPOSED ZONING: MR-2
EXISTING LAND USE: Undeveloped (platted residential)
PROPOSED LAND USE: Single-Family Residential

SURROUNDING LAND USES:

SURROUNDING	LAND Use(s)	ZONING	ANNEXATION STATUS
North	Very Low Density Residential	A-1	County
South	Residential	MR	County (2 parcels)
East	Residential	MR-2	City
West	Residential	MR-2, AR	City

EXECUTIVE SUMMARY:

This annexation application is for a portion of a plat known as Sun Rise Hills Addition Filing No. 1 southwest of the intersection of Ridge Road and Thomas Road. The property is currently zoned County MR, Medium Density Residential, the applicant has applied for a zone change to MR-2, Medium Density Residential-Developing (UDC-15-00543). This portion of Sun Rise Hills Addition Filing No. 1 is undeveloped and consists of 25 residential lots to be developable as single family lots.

This property has been classified as Urban Residential within PlanCheyenne and it is located within the City's Urban Service Boundary. If approved, this parcel will have all City Services to it that are normally provided. Service extension is the responsibility of the developer.

The existing plat has a north/south street platted and not built identified as Sunrise Hills Drive. The applicant has identified this street as vacated in 1996. However, it is not clear if the vacation is valid since it does not appear to be approved by the City, being within a mile of the City boundary. Currently, the area within this north/south street is not considered a buildable lot.

In order to serve this subdivision, the BOPU will likely need additional easements to accommodate water and sewer requirements. The subdivision has a dead end street. This street is the reason the easement will be required. Another concern is the BOPU's request for an easement through Lots 1 and 18 for water and sewer. These two lots have an existing 16 foot pipeline easement through them. It is the desire of the BOPU that these lots be expanded. Another route is that Lots 2 and 17 could be moved or resized. The BOPU is looking for a 30 foot easement. With this easement in addition to the existing 16 foot easement, Lots 1 and 18 will have insufficient frontage. We are requesting that the area be replatted or the lot lines be adjusted.

Due to meeting the review criteria found in Wyoming Statute § 15-1-102, staff recommends approval of this annexation.

PlanCheyenne:

PlanCheyenne recommends this area for a future land-use of Urban Residential. With Urban Residential, a broad variety of residential types are included. This type of development is desired in established and newly developing neighborhoods. This area is located within the Urban Service Boundary for the City, which means that the City has planned for growth into this area. The plat is along Ridge Road, which is classified as a minor arterial by PlanCheyenne, is also mentioned by the Plan to be congested closer to Pershing Boulevard. Future consideration should be made as to larger scale development in such areas. To the west is an established residential neighborhood and to the east is the new Thomas Heights Subdivision where construction is starting. Both of these developments are in the City.

PlanCheyenne is supportive of this annexation as it helps to create more contiguity, both by cleaning up interior parcels outside of the City Limits and by furthering street and sidewalk connectivity. Residents in this development will have access to the on-street bike route on Ridge Road and will be within the one mile of North Cheyenne Community Park. This annexation will reduce the size of a county pocket, leaving two parcels to the south and two parcels to the north in the county.

ANNEXATION ELIGIBILITY DATA/ANALYSIS: Before any territory is eligible for annexation, the governing body must find that the following criteria are met (W.S. § 15-1-402 (a)):

COMMON WELFARE – *An annexation of the area is for the protection of the health, safety, and welfare of the persons residing in the area and in the city or town.*

This is a voluntary petition for annexation. The application desires a connection to City services to accommodate urban development. The annexation of this property will increase the health, safety, and welfare of the residents of the development once it is built. By being in the City Limits, the future residents will receive access to City Fire and Police Services. The future residents will also be hooked on to City Water and Sanitary Sewer.

PART OF THE CITY – *The urban development of the area sought to be annexed would be constituted a natural, geographic, economic, and social part of the annexing city or town.*

This subdivision, once developed, will constitute a natural, geographic, economic, and social part of the City. The contiguity this development will create to the existing area to the west and the future development to the east is natural and geographical in context. 54% of the boundaries of this property border current City boundaries. The residents will likely work in the Cheyenne area and will be a part of the social and economic fabric of the local community. Ridge Road, a minor arterial, with its close proximity to College Drive and Dell Range Boulevard, both principal arterials, ties the development to the existing roadway network. This development fits into the overall growth of Cheyenne to the north and east of the original City.

LOGICAL EXPANSION – *The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed.*

The area is a logical and feasible addition to the City due to the reasons previously listed. All services normally available to residents will also be available to this location. As with any expansion at the edge of the City, it will typically require the expansion of City and BOPU services. This is referenced in the BOPU's comments in that easements will have to be created that may influence current lot configurations. Impacts will also be felt for services such as fire protection, police protection, street maintenance, and park maintenance. Infill, as this development is, is encouraged.

CONTIGUOUS – *The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407.*

The parcels proposed for annexation are a little over 39% contiguous, with the contiguous areas stretching the lengths of the western and eastern annexation boundaries. This meets the requirements of W.S. 15-1-407.

UTILITIES – *If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to service the annexed area pursuant to W.S. 15-1-4102.*

Utility franchises are in place to serve the area should it be annexed.

CERTIFIED MAILING – *The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date, and location of the public hearing required by W.S. 15-1-405(a).*

A certified mailing was made to the required agencies on September 11, 2015.

ANNEXATION REPORT DATA: In compliance with W.S. § 15-1-402(c) the following information is provided:

- (i) A map is not required for this report based on the absence of exercising the authority granted under W.S. 15-3-202 (b) (ii).
- (ii) The total **estimated** cost of infrastructure improvements required of the landowners by the City related to the annexation is approximately \$0.00. All improvements are deferred until time of development.
- (iii) Services customarily available to City residents include water, sewer, sanitation, police and fire protection. Development will require extension of water and sewer services, which are available to the subject property. Water and sewer services are provided upon application and payment to the Board of Public Utilities, with sanitation services occurring concurrently. Provision of these services is initiated by the property owner.
- (iv) Fees for water, sewer, and sanitation services are a variable amount for commercial units, based upon volume. Tap fees vary based on the size of the tap required.
- (v) The current property tax mill levy imposed is 66.00 and projected property tax mill levy imposed by the city is 71.00.
- (vi) The infrastructure described in (ii) above includes improvements required within the existing boundaries of the municipality to accommodate the proposed annexation.

REVIEWING AGENCIES WITH COMMENTS:

- Board of Public Utilities (Linda Gunter)
 - o The Board of Public Utilities is requiring that the proposed water and sanitary sewer mains be shown on this Annexation Map. All water and sanitary sewer mains that are not in the right-of-ways must have appropriate easements.
 - o A Wyoming Professional Engineer will need to submit proposed site plans with all utilities and overall projected design, plans and profiles to the Board of Public Utilities.
 - o After BOPU's review and signature of approval, the design engineer will need to send the plans to the (D.E.Q.) for approval and a permit to construct. When the D.E.Q. permit is issued, City's Engineer's Office and Cheyenne Fire Department have reviewed and signatures of approval are on the cover sheet. Then the Agent/Owner may employ a licensed contractor to install the utilities, apply for all applications for water/sewer tap permits from the BOPU, and request a preconstruction meeting with all parties involved prior to construction.
 - o All water and sanitary sewer utilities need to be designed and constructed in accordance with the latest City of Cheyenne and Board of Public Utilities Construction Specifications Standards and Standard Drawings and the latest Rules & Regulations for Establishing Policies & Design Criteria of the Board of Public Utilities Cheyenne, Wyoming.
- Cheyenne Light, Fuel & Power (Jack Whyatt)
 - o CLFP does not require rear lot easements but requires 8' front lot easements along Johnson St and Thomas Rd
- Engineering Department (Jack Studley)
 - o The Northeasterly corner of this annexation does not indicate a proper survey monument as being, or to be set. There must be an appropriate survey monument set in this location in compliance with State Statute. This is required.
 - o The plat for SUN RISE HILLS ADDITION - FILING NO.1 shows a 0.40 foot difference between the North-South dimensions for the lots in Block 5 and the lots in Block 6, which would result in a small jog of what is to be the Southerly boundary line of this annexation. This map must be amended accordingly, or an explanation of why that jog does not appear on this map is required.
- Laramie County Assessor (Clarice Blanton)
 - o The title block needs to be specific as to which lots are being annexed along with the portion of Sun Rise Hills Dr. Tracts 4 and 5, Dell Range Subdivision was the parent property before being platted to Sun Rise Hills Addition, Filing No. 1.
 - o The POB is not evident.
 - o The lots and blocks should be numbered.
 - o Sun Rise Hills Dr. needs to be labeled along with the Resolution No. under which it was vacated.
 - o In the Legal Description, when traveling south along the west right of way line of Ridge Road, 433.97 ft., to a point; the point, if applicable, should be called out as the northeast corner of Lot 2, Block 5, Sun Rise Hills Addition, Filing No.1. Then when going west, call out 'along the north boundary of Lots 2 and 7, Block 5'.
 - o The Legal Description does not mention vacated Sun Rise Hills Dr.
- Laramie Cty Planning & Devel. (Brett Walker)
 - o Status of Sunrise Hills Drive?
- Development (Mike Tylka)
 - o Label vacated right-of-way of Sunrise Hills Drive.
 - o Change spelling of street name from Johnson to Johnston.
 - o Title block is incorrect for instance should be "a parcel of land of approximately 6.17 acres situated in Lots 1,8, and 9, Block 5; Lots 1-4, Block 6; and Lots 1-18, Block 7, Sun

Rise Hills Addition Filing No. 1, and the adjacent portions of Thomas Road, Johnston Street, and a portion of vacated Sunrise Hills Drive, Laramie County, Wyoming.”

- Engineering Department (Nathan Beauheim)
 - o The plat for Sun Rise Hills Addition shows the street name as “Johnston Street”. We request that Johnson/Johnston be renamed as it duplicates Johnson Avenue located in Fairview Addition (between Nationway and Lincolnway, parallel to Hot Springs). Contact Eng. Dept for instructions.
 - o The City Engineer’s Office is amenable to postponing submittal of the final soils report until such time as detailed construction plans are submitted for the public infrastructure.
- Environmental Health Department (Roy Kroeger)
 - o Laramie County Small Wastewater System Regulations
 - o Environmental Health supports annexation so as to provide public water and sewer to this development.
- Parks and Recreation Admin. (Teresa Moore)
 - o Update vicinity map to show platted lots & ROWs in Thomas Heights

REVIEWING AGENCIES W/OUT COMMENTS:

- Charter (formerly Optimum) (Kurt Quinlivan)
- Engineering Department (John Hall)
- Laramie County Public Works (Rob Geringer)
- Development (Brandon Cammarata)
- GIS/Engineering/Addressing (Gary Stogsdill)
- Fire Department (Jim Schamerhorn)
- Metro Planning Office (MPO) (Nancy Olson)
- Police Department (Brian Kozak)
- Urban Planning (Matt Ashby)

REVIEWING AGENCY NOT RESPONDING:

- CenturyLink (formerly Qwest) (Bob Bates)
- Laramie County Attorney (Mark Voss)
- Laramie County Clerk (Vicki Swanson)
- LCFD #2 (Jason Caughey)
- Laramie County Sheriff (Danny Glick)
- High West Energy (Lloyd Sisson)
- City Clerk (Harry Osborn)
- Laramie Cty Conservation Dist. (Jim Cochran)
- Public Works (Vicki Nemecek)
- Suncor Pipeline (Megan Romano)

OTHER COMMENTS RECEIVED:

- None

Encl: Annexation Ordinance
Annexation Map

Cc: Agent
Owner
File



www.cheyennecity.org ●

CITY CLERK DEPARTMENT

Office of City Clerk
2101 O'Neil Avenue, Room 101
Cheyenne, WY 82001
Ph: (307) 637-6334

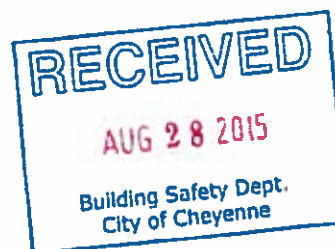
**CITY CLERK CERTIFICATION
OF PETITION FOR ANNEXATION**

I hereby certify that the Petition for Annexation filed with the City Clerk's office on August 26, 2015, signed by Bernie Lowery, on behalf of Pronghorn Development, Ltd., property owner, substantially complies with the requirements of Wyoming Statute Title 15, Chapter 1, Article 4.

Dated this 28th day of August, 2015


Carol Intlekofer, MMC
City Clerk

(SEAL)



City Of Cheyenne



DEVELOPMENT SERVICES – ANNEXATION – PETITION

PETITION FOR ANNEXATION

TO: **THE HONORABLE MAYOR, RICHARD L. KAYSEN,**

**AND MEMBERS OF THE CITY COUNCIL OF THE CITY OF
CHEYENNE, WYOMING:**

KNOW ALL THAT Pronghorn Development, Ltd.,
Owner name(s)

The undersigned owners, hereby petition to annex to the City of Cheyenne, Wyoming, the following described property:

Legal description of requested annexation (attach additional sheet if necessary):

Sun Rise Hills Addition- Filing No. 1: Lots 1, 8 and
9, Block 5; Lots 1-4, Block 6; Lots 1-18, Block 7;
Plus (6,288 Square feet, Res #961104-02) Vacated
Sunrise Hills Drive

The undersigned petitioners hereby respectfully request that said property and adjacent streets be annexed to the City of Cheyenne, and be made a part thereof.

By submitting the petition for annexation, the undersigned agree to abide with all applicable provisions and City ordinances, rules, and regulations involving annexation.



DEVELOPMENT SERVICES – ANNEXATION – PETITION

Attach additional sheet if necessary.

Bernie Lowery Bernie Lowery 8-24-15
Signature Printed Name Date

Signature Printed Name Date

Signature Printed Name Date

Signature Printed Name Date

Signature Printed Name Date

Signature Printed Name Date

Signature Printed Name Date

Signature Printed Name Date

Signature Printed Name Date

Signature Printed Name Date

Note: According to Wyoming State Statute § 15-1-403(b), no signature is valid if it is dated more than 180 days prior to the date of filing. No person signing a petition for annexation may withdraw his/her signature from the petition after it has been filed with the City Clerk.

Attest: Brian Emmer

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A PARCEL OF LAND APPROXIMATELY 6.17 ACRES SITUATED IN LOTS 1, 8, AND 9, BLOCK 5; LOTS 1-4, BLOCK 6; AND LOTS 1-18, BLOCK 7, SUN RISE HILLS ADDITION FILING NO. 1, AND THE ADJACENT PORTIONS OF THOMAS ROAD, JOHNSTON STREET, AND A PORTION OF VACATED SUNRISE HILLS DRIVE, LARAMIE COUNTY, WYOMING (LOCATED AT THE SOUTHWEST CORNER OF THOMAS AND RIDGE ROADS)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That Pronghorn Development, Ltd., owner of parcels of land being described as Lots 1, 8, and 9, Block 5; Lots 1-4, Block 6; and Lots 1-18, Block 7, Sun Rise Hills Addition Filing No. 1, Laramie County, Wyoming, has petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and
- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Adam E. Deschler, a Professional Land Surveyor, registered in the State of Wyoming, PLS Number 12045; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned MR Medium Density Residential – by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

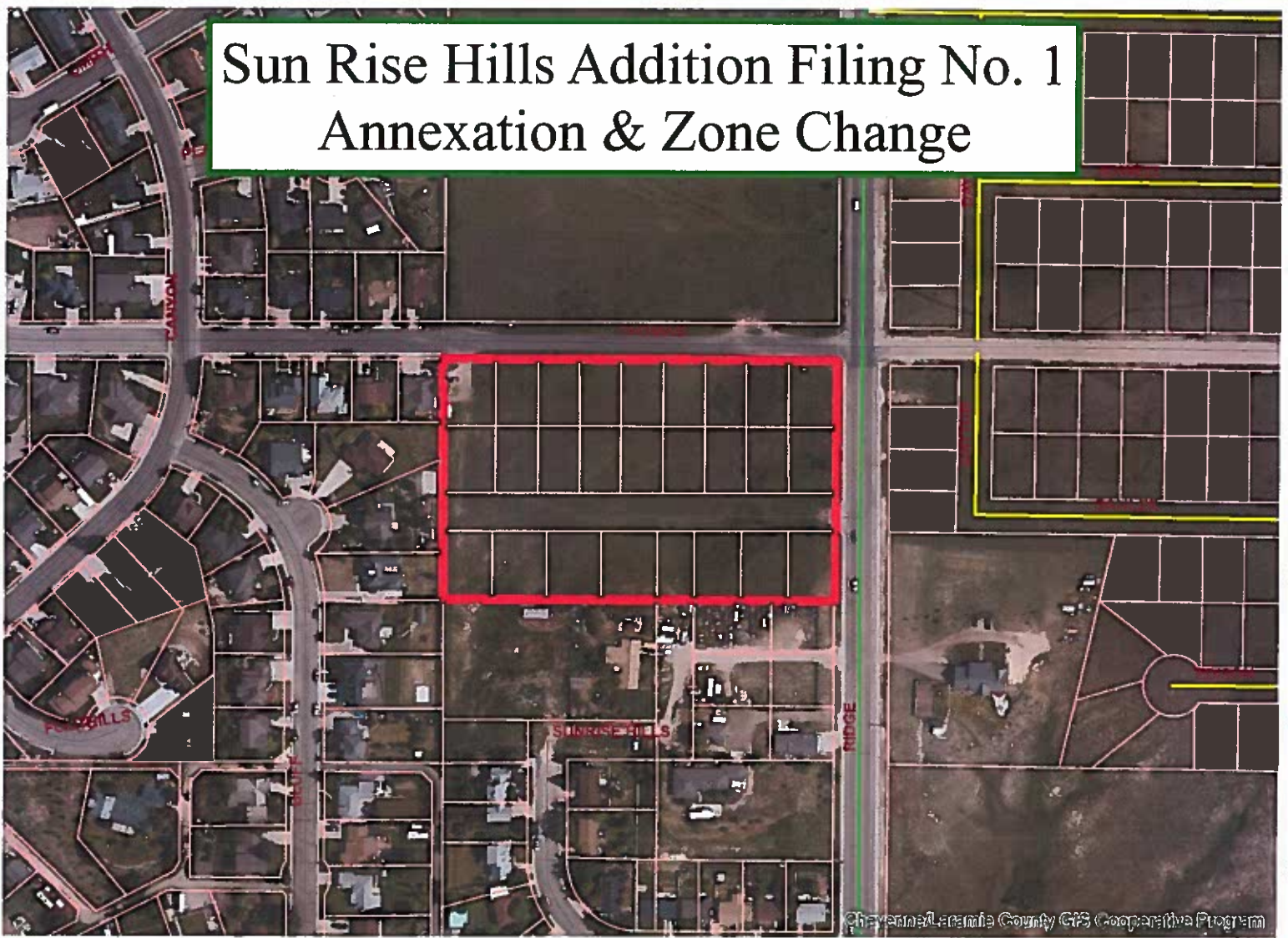
RICHARD L. KAYSEN, MAYOR

(SEAL)

CAROL INTLEKOFER, CITY CLERK

published: _____

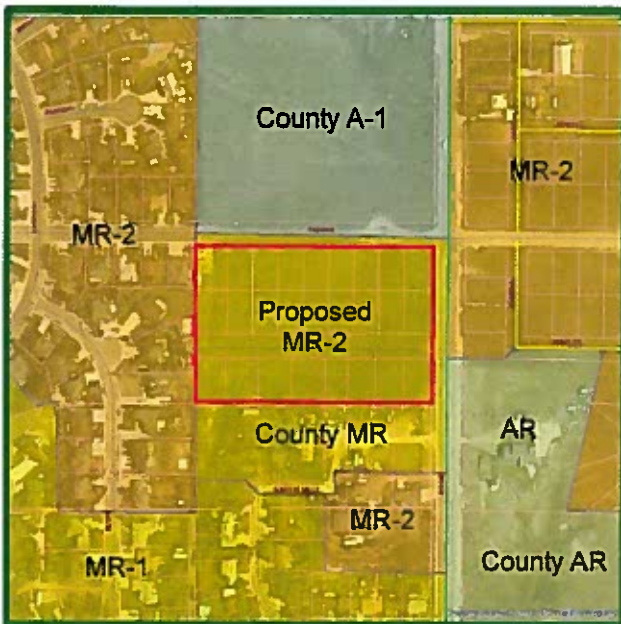
Sun Rise Hills Addition Filing No. 1 Annexation & Zone Change



Applicant: Bernie Lowery, Pronghorn Development, Ltd.
Agent: Brad Emmons, AVI, PC
Application Numbers
Annexation: UDC-15-00542
Zone Change: UDC-15-00543

0 375 750
Feet

Zone Districts



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Annexation



[illegible]

MAYOR

CITY CLERK